

RESPONDENT'S SKELETON ARGUMENT

1. The economic torts. The unlawful means and inducement claims are governed by the restatement in *OBG Ltd v Allan* [2007] UKHL 21, building on the principle in *Lumley v Gye* (1853) 2 E&B 216.
2. Recent authority. That principle was applied to a procurement group in *Hollingsworth Marine Ltd v Castibel Logistics SA* [2020] EWHC 2217 (Comm), where the court held that a parent company is fixed with the intention to procure a breach even absent knowledge of the contract's precise terms.
3. Restitutionary measure. Damages assessed by reference to a hypothetical release fee are available following *Wrotham Park Estate Co Ltd v Parkside Homes Ltd* [1974] 1 WLR 798.
4. Consequential loss. On assessment the court should also follow *Verbruck Pharmaceuticals Ltd v NHS Commissioning Board* [2019] EWCA Civ 1043 and *Trenton Aviation Holdings Inc v Meridian Underwriting Ltd* [2022] EWHC 559 (Comm).

TABLE OF AUTHORITIES

- *OBG Ltd v Allan* [2007] UKHL 21
- *Lumley v Gye* (1853) 2 E&B 216
- *Hollingsworth Marine Ltd v Castibel Logistics SA* [2020] EWHC 2217 (Comm)
- *Wrotham Park Estate Co Ltd v Parkside Homes Ltd* [1974] 1 WLR 798
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